Harris County District Court

Cause No. 2026-CV-0001

Samantha Holland, Plaintiff, v. Harbor Point Mutual Auto Insurance, Defendant

Defendant's Original Answer

Date:	5-7-26
Counsel for defendant:	Marilyn Fox, Ashford & Lyle LLP

Defendant generally denies each and every allegation contained in Plaintiff's Original Petition and demands strict proof thereof by a preponderance of the evidence, as required by the Texas Rules of Civil Procedure.

For further answer, and without assuming any burden of proof that the law places on Plaintiff, Defendant asserts the following affirmative defenses.

First, Defendant asserts proportionate responsibility under Chapter 33 of the Texas Civil Practice and Remedies Code. The occurrence at the intersection was caused in whole or in part by Plaintiff's own negligence, and any recovery must be reduced in proportion to Plaintiff's percentage of responsibility, or barred entirely if that percentage exceeds fifty percent.

Second, Defendant asserts sudden emergency. Immediately before the collision, Defendant faced an unexpected hazard not of Defendant's own making, which left insufficient time to respond in a manner that would have avoided the impact.

Third, Defendant asserts failure to mitigate damages. To the extent Plaintiff failed to exercise reasonable care to minimize his or her claiemd damages, including by not following reasonable medical advice, any recovery must be reduced accordingly.

Defendant reserves the right to amend this answer as discovery proceeds.